

Moving-In Condition Report & Rights Checklist — Western Australia

Get this right on day one — it protects your bond for the entire tenancy.

Correct as at July 2026. General information only, not legal advice.

Section 1 — Before You Sign the Lease

- ☐ []
- Know your tenancy is governed by the Residential Tenancies Act 1987 (WA)**, currently subject to an active government reform process.
- ☐ []
- Ask about pet arrangements upfront.** WA permits a pet bond, recently increased to a maximum of **\$350** — confirm whether this applies in addition to your standard bond.
- ☐ []
- Ask about smoke alarm compliance** and any recent safety checks.

Section 2 — The Condition Report Itself

- ☐ []
- Request the entry condition report** if not automatically provided.
- ☐ []
- Complete your own section thoroughly**, room by room.
- ☐ []
- Photograph everything**, especially existing wear, damage, or imperfections.
- ☐ []
- Note existing issues explicitly** — this protects you given fair wear and tear cannot be claimed against you at bond time, but you need your own documented baseline to prove what's genuinely pre-existing.
- ☐ []
- Test everything that should work:** taps, toilets, switches, power points, stovetop, and any included appliances.
- ☐ []
- Submit your condition report within the required timeframe.**
- ☐ []
- Keep a copy for yourself** — you'll need it again at the end of your lease.

Section 3 — Ongoing Rights During Your Tenancy

- ☐ []
- Know the current termination rules.** As at July 2026, landlords can still end a periodic tenancy with **60 days' notice**, or a fixed-term tenancy at the end of its term with **30 days' notice**, without providing a reason — this is the current position, though a reform to remove this is proposed (see Section 4).
- ☐ []
- Know your hardship protection exists regardless.** If facing termination and experiencing genuine hardship, you can apply to the Magistrates Court for additional time to find alternative accommodation.
- ☐ []
- Know that fair wear and tear cannot be claimed against your bond.**
- ☐ []
- Request repairs in writing** — this creates a paper trail if a dispute arises later.

Section 4 — A Major Reform Is Coming — Stay Informed

- ☐ []
- Understand the proposed change.** In May 2026, the WA Government announced its intention to remove no-grounds terminations entirely, replacing them with a defined list of acceptable reasons (e.g. owner or relative occupying the property, renovation, or repeated tenant breaches) — bringing WA into line with most other Australian states.
- ☐ []
- Know this had not yet passed into law as at July 2026.** Check the current status with Consumer Protection WA, since this is a live, actively debated reform with real industry pushback (REIWA has raised concerns about rental supply impacts) that could affect its final form or timing.

Section 5 — Red Flags at Move-In

- ☐ []
- A condition report with suspiciously few noted issues** on an older or clearly lived-in property.
- ☐ []
- Being pressured to sign before receiving the condition report or properly inspecting.**
- ☐ []
- Any pet bond request exceeding \$350** — this is above the current maximum.

Quick Reference — WA Tenant Rights (July 2026)

Requirement	Detail
Governing legislation	Residential Tenancies Act 1987 (WA)
Current termination notice	60 days (periodic) / 30 days (fixed-term at expiry), no reason required
No-grounds eviction ban	Proposed, not yet law
Maximum pet bond	\$350
Fair wear and tear	Cannot be claimed against bond
Hardship extension	Available via Magistrates Court application

